

T.261/07 concerned a case in which an intermediary delivery service received and distributed mail within the patentee's premises. The board held that there had been no effective cross-check. Such a failsafe system would have required a regular comparison between the mail room database and the database of the Central Intellectual Property Department in order to discover discrepancies.

In **T.1962/08** the representative argued before the board that an independent cross-check in the system for monitoring time limits was not obligatory. The board confirmed what had been said in **T.428/98**, namely that the requirements to be met by a system for monitoring time limits in general included making sure that monitoring duties were not left to one person alone, but that the system incorporated an overall checking mechanism which was independent of the person responsible for monitoring time limits. This checking mechanism could be provided within a single system for monitoring time limits. If the checking mechanism involved a second system for monitoring time limits, the latter had to be independent of the former ("redundant"). See also **T.1465/07** in which the board held that the additional burden of an independent cross-check was not disproportionate for a large firm, where the cross-check can be organised more economically than in a smaller one. In **T.1149/11** the board held that the duty of care concerning supervision of the assistant required that an effective cross-check was implemented, at least in a firm where a large number of time limits have to be monitored.

In **T.836/09** of 17 February 2010 there was an isolated mistake by an assistant within an otherwise satisfactory system of **processing outbound mail**. The board held that in such a situation, irrespective of whether or not a large firm was concerned, the duty of having at least one effective cross check built into such a system was dispensed with. This applied even to important letters such as those whose improper treatment may entail the loss of a right or means of redress. The reason was that, in contrast to the monitoring of time limits, the risk of an error in the processing of outbound mail was low because such processing generally involved the execution of straightforward steps (with reference to **T.178/07**; see also **T.1171/13** and **T.2023/14** in relation to the sending of a fax by an assistant).

Concerning the need for an independent cross-checking mechanism and the form it should take, see also **T.1172/00**, **T.785/01** of 30 September 2003, **T.36/97**, **T.622/01**, **J.1/07**, **J.13/07**.

b) Control mechanisms in small firms

In relation to small firms and offices, the boards have at times dispensed with the requirement for a cross-check (see e.g. **J.31/90**, **T.166/87** of 16 May 1988, **J.11/03**, **T.1355/09**). As to the representative's own responsibility for performing an additional check when receiving the file to deal with, see **T.1561/05**, **T.592/11**, **R.18/13** as summarised in this chapter III.E.5.5.4.e) "Ultimate responsibility of the representative".

In **T.1355/09** the board held that no control mechanism had to be in place because the firm involved was very small and it had not overlooked a time limit, but rather the mistake had been made **during payment** of the appeal fee, i.e. whilst performing the act needed to observe the time limit. In these circumstances, no control mechanism was required, the

likelihood of error being comparatively low. Insisting on one would in practice reduce the time limit: to be effective, any checks would have to be made after payment, but also within the time limit (see also T 3029/18 of 3 June 2020).

In T 166/87 the board held that in a relatively small office, normally working in an efficient and personal manner, employing normally reliable personnel, a cross-check mechanism, especially in relation to one-off payments such as an appeal fee, could fairly be regarded as superfluous.

In J 31/90 the Legal Board took the view that the system used for observing the time limit, while far from perfect, could be considered in the special circumstances of the case to be normally satisfactory. The system combined the giving of specific oral instructions to the secretary on a case by case basis, with notations on the file to indicate which documents should be filed with the EPO. The board emphasised, however, that the system could only be so considered because of the particular conditions in which the representative and her secretary worked. Over a period of ten years, working together alone in a small office they had built up an excellent working relationship and mutual trust.

In J 11/03 the Legal Board confirmed that the organisational requirements for a generally efficient time-limit monitoring system were subject to variation on account of the firm's size and nature and the number of time limits that had to be monitored. A cross-checking mechanism may in certain circumstances be regarded as superfluous in a small firm employing normally reliable personnel and normally working in an efficient and personal manner, but not in a large company with its own patent department (T 166/87). The appellant was a very small firm with a commercial division essentially comprising only the commercial manager and the book-keeper. In the circumstances additional checking that payments had actually been made might be deemed superfluous without impairing the functioning of the system.

5.4.5 All due care in making provisions for staff absences

In T 324/90 (OJ 1993, 33) the board held that in a large firm, where a considerable number of deadlines had to be monitored at any given time, it had normally to be expected that at least **an effective system of staff substitution** in the case of illness and for absences in general was in operation in order to ensure that official documents such as decisions by the EPO, which started periods within which procedural steps had to be carried out, were properly complied with.

In T 1401/05 of 20 September 2006 the board followed decisions T 324/90, J 41/92 and J 5/94 and deemed it necessary that reasonable provisions for absence due to the illness of a person who is in charge of monitoring time limits are made, unless in the particular circumstances of a case imposing such provisions would have to be considered as an undue burden. Only where any necessary provisions have been taken will it be possible to deem the monitoring system of time limits to be "normally satisfactory" (see T 324/90), and thus for considering illness to be an excuse for not meeting a deadline. Regarding the need for a back-up in the specific case, the board considered it of relevance that the number of time-limits to be complied with was small (the appellant filed only a few patent

applications per year). Under these circumstances, the board accepted that it was not necessary for meeting the standard of due care to make specific provisions for the unforeseeable two-day illness of the sole employee in charge of monitoring of time limits; more specifically, no substitute for him had to be appointed.

In T 122/91 the board held that due care had not been exercised if the head of an office went off on a journey without informing his deputy of matters requiring immediate attention because a time limit was involved.

In J 41/92 (OJ 1995, 93) the Legal Board found that if a professional representative ran a one-person office, appropriate provisions needed to be made so that, in the case of an absence through illness, the observance of time limits could be ensured with the help of other persons. If there was no substitute or assistant at the representative's office, co-operation with colleagues or with a professional association could, for example, be sought for this purpose. See also T 387/11, in which the representative, who ran a one-person office, had taken precautions to ensure that another representative could cover for him if he were absent owing to illness, so that deadlines would normally be met. In taking such organisational measures, he had met the requisite standard of "all due care".

In T 677/02 the board decided that a large enterprise had not exercised all due care required by the circumstances if, when the representative actually responsible was on short time working, **no deputy** had been designated to cross-check the input of time limits into the system for monitoring time limits.

In T 2569/16 the board was of the view that in the circumstances, where the appellant (patent proprietor) was at the relevant time a company which formed part of a group of companies operating in several countries, and where the intellectual property work of all companies within the group was centralised, it could be expected that there would be a satisfactory system in place in the IP department which ensured that time limits were not missed when the IP manager was absent or the IP manager position was vacant.

5.4.6 Second mistake by responsible person

In T 447/00 and T 448/00 the board was not convinced that the approach taken by the department of first instance, that the admitted existence of four mistakes in respect of the same procedural act could not, by definition, be qualified as "isolated", took sufficient account of the issues to be considered in connection with Art. 122(1) EPC 1973. The board stated that the case law of the boards of appeal referring to an "isolated mistake within a normally satisfactory system" did not normally require that only a "single" error had occurred in relation to a case for which re-establishment of rights was sought. It was not excluded that, in certain circumstances, a chain of errors could well be qualified as "isolated".

In T 808/03 of 12 February 2004 the board held that the condition of "an isolated mistake by a usually reliable person" was not met in the present case, as the responsible person had made a second mistake when processing the reminder of a system for monitoring time limits. See also T 1149/11, T 1325/15.

In T.1325/15 the appellant argued that since a system with a cross-check would identify any single mistake, the term "an isolated mistake" had to be understood as encompassing more than one mistake. In the case in hand, the failure to file the notice of appeal in time had been caused by a combination of isolated mistakes and the appellant argued the requirement of all due care was therefore complied with. The board rejected the appellant's proposition; having a satisfactory system in place does not relieve a representative of his duty to take all due care required by the circumstances when performing procedural steps forming part of that system.

In T.1815/15 the first employee (an attorney's clerk) made a mistake by mentioning the wrong paragraph of R. 82 EPC in the heading of the accompanying letter to the EPO, overlooking the surcharge required by R. 82(3) EPC. It appeared to the board that the firm of attorneys representing the patent proprietor was equipped with a monitoring system which would normally detect this kind of mistake. Therefore the mistake by the second employee when comparing the communication from the EPO with the actions performed by the first employee may be ascribed to an isolated error of the second employee, which the board ascribed to a personal and isolated error in a system which normally should prevent such deficiency.

In T.1214/20 a series of misunderstandings and errors had occurred. The board found that at least three opportunities were missed, and for this reason alone, it was not possible to talk of an isolated mistake within a normally-satisfactory monitoring system. The representative's ICT system also did not provide for independent cross-checks.

5.4.7 Deficiencies in computerised systems

In T.473/07 the board held that the representative's practice of checking only the dates entered by his records clerks while relying on the resulting time limits calculated by the computerised system did not rule out errors. Modern real-world offices comprised computerised systems but **program deficiencies** were also a well-known part of that reality and could not be absolutely ruled out. Therefore, relying exclusively on a time limit generated by a computer program and refraining even from a plausibility check did not meet the all-due-care requirement.

In T.902/05 the board held that whether the systems used in a particular firm to ensure that procedural acts were completed in due time fulfilled the requirement of the taking of "all due care" depended upon the individual circumstances of each case (see also T.1663/12). Where an applicant relied solely on electronic means to record and monitor time limits, the regular making of back-up copies, or some equivalent form of securing data, would generally be an elementary precaution.

For a case in which the computerised system was deemed satisfactory, see T.1269/13 of 4 February 2015.

5.5. Persons required to exercise due care; requirements regarding due care

Primarily it is up to the applicant (patent proprietor) to show due care. The applicant has to accept the actions of his representative, including the actions of the attorney's assistants and employees, on his behalf (J 5/13 with reference to J 5/80, OJ 1981, 343; J 1/07). The "due-care" obligation is assessed differently, depending on whether an applicant, his representative or an assistant is involved.

5.5.1 Due care on the part of the applicant

In J 3/93 the Legal Board ruled that the duty to exercise all due care stipulated by Art. 122 EPC 1973 applied first and foremost to the applicant and then, by virtue of the delegation implicit in his appointment, to the professional representative authorised to represent the applicant before the EPO. The fact that the representative had acted correctly did not exempt his client from suffering the consequences of his own mistakes, or even negligence (see also J 16/93, J 17/03, J 1/07, J 1/13).

a) Due care standard

In T 1477/17 the board held that, in principle, a layperson was not expected to show the same attention to detail as was expected of a professional representative when dealing with correspondence in patent matters, since a layperson could not be expected to have the same level of knowledge. Depending on the circumstances, an error on the part of a layperson might therefore be excusable whereas the same error by a professional representative may not. Nevertheless, even a layperson is obliged to exercise all due care in matters for which they have taken responsibility, and must take all steps that can be reasonably expected of a diligent person.

In J 22/92 the Legal Board held that the applicant, who had appointed US attorneys for the purpose of the PCT application, was entitled to believe that a copy of a communication had been sent to the US attorneys as well. The board referred to the principle of proportionality and stated that the loss of the patent application as a result of what may be considered at most a minor procedural irregularity would otherwise appear an extremely severe result. The board held that, in the case in point, the due care to be considered was in fact not that which was expected from a professional representative but that which was expected from an applicant unaware of the proceedings.

In T 2120/14 the board found the examining division's finding of lack of due care by the applicant to be justified in the circumstances, in which the observance of a time limit depended entirely on a single person who, in view of his impending extensive workload and travel, did not take the necessary precautions to ensure that the time limit could be met in case he was prevented from giving timely instructions. The board held that it was clear from the travaux préparatoires to Art. 122 EPC that the possibility of excusing the negligence of an employee who normally carries out his work in a satisfactory manner was not intended to be extended to the applicant or its professional representative (see R 18/13). In the case in hand it was an executive of the company who had failed to exercise all due care, who the board found was acting on behalf of the appellant.